

Tentative Rulings for August 21, 2026 Department 10

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 10 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
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- Meeting Number: **161 888 5460**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

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1.

CASE #	CASE NAME	HEARING NAME
CVRI2403057	LYNSIE B. ASHTON, SPECIAL ADMINISTRATOR FOR DECEASED PLAINTIFF PATRICIA L. NISSEN. vs NISSEN	MOTION FOR ORDER ENFORCING JUDGMENT, COMPELLING RELEASE OF FUNDS, AND DETERMINING THAT THE PRESERVATION LIEN BEARS INTEREST AT THE LEGAL RATE OF 10% PER ANNUM
CVRI2403057	LYNSIE B. ASHTON, SPECIAL ADMINISTRATOR FOR DECEASED PLAINTIFF PATRICIA L. NISSEN. vs NISSEN	MOTION TO SET ASIDE

Tentative Ruling:

The Court **GRANTS** Plaintiff's request for judicial notice. The Court finds Plaintiff's motion is timely. The Court GRANTS Plaintiff's motion to set aside and SETS ASIDE and VACATES the June 5, 2026 Judgment. The Court DENIES Defendants' motion to enforce the Judgment as moot.

The Court enters a corrected Judgment as follows: (1) Judgment is entered in favor of Defendants Gary G. Nissen, Alan Nissen, Laurie Nissen, and Extreme Toys Family Partnership and against Plaintiff Patricia L. Nissen (deceased, by and through her Successor in Special Administration, Lynsie B. Ashton) on all causes of action asserted in the Verified Complaint filed June 4, 2024; (2) Plaintiff shall take nothing by way of her Complaint; (3) the Court's prior orders awarding monetary sanctions as to Plaintiff and Plaintiff's counsel, Mark A. Mellor and The Mellor Law Firm, jointly and severally, shall pay to Defendants the total sum of \$2,720.00 (\$1,360.00 on Gary G. Nissen's Requests for Admission, Set One, and \$1,360.00 on Alan Nissen's Requests for Admission, Set One), plus interest at the legal rate from the date of the original November 17, 2025 orders until paid in full; and (4) Defendants shall recover their costs of suit in the amount to be determined by the filing of a Memorandum of Costs pursuant to California Rules of Court, rule 3.1700.

Procedural History

On May 6, 2026, the Court granted Defendants' motion for summary judgment based on Plaintiff's deemed admissions.

Defendants submitted a proposed judgment, to which Plaintiff filed an objection. On June 5, 2026, the Court entered Judgment in favor of Defendants on all causes of action asserted in the Complaint. The Judgment states that Plaintiff shall take nothing under the Complaint, and "Plaintiff's counsel, Mark A. Mellor, Esq., of The Mellor Law

Firm, is hereby ordered to release forthwith all funds currently held in The Mellor Law Firm Client Trust Account (Reference: Nissen v. Nissen, RCSC Case No. CVRI2403057) to Defendants... consistent with the preservation lien and rights reserved therein in the amount of \$341,186.00 (plus any accrued interest)." Defendants filed a Notice of Entry of Judgment on June 10, 2026.

Motion to Set Aside Judgment

Plaintiff moves, pursuant to C.C.P. §§ 663 and 663a, to set aside the Judgment and enter a different judgment consistent with the court's ruling on Defendants' motion for summary judgment. She argues that in the MSJ ruling, the court found only that, based on her deemed admissions, Plaintiff failed to support her claims in the Complaint, but the Judgment exceeds that ruling and the issues adjudicated by awarding affirmative relief that was never sought by Defendants. She further argues that while the Stipulation preserved Defendants' rights pending further litigation or court order, it did not automatically award Defendants the funds for simply defeating the Complaint.

In opposition, Defendants argue that the motion is untimely because it was not filed within 15 days of the Notice of Entry of Judgment, and it should be denied on that basis. They also argue that the motion should also be denied on its merits because it is an improper attempt to relitigate issues already decided multiple times. They contend that the Judgment properly implements the Stipulation and court order regarding the preservation lien, and a Cross-Complaint was unnecessary.

In reply, Plaintiff argues that the motion is timely pursuant to C.C.P. § 663a(a)(1) because she filed a Notice of Objection on May 13, 2026, in which she objected to the proposed Judgment, identified the legal grounds relied on in this motion, and asked that ¶ 3 be stricken and a corrected judgment entered. She also argues that contrary to Defendants' argument, there is no evidence that the court considered and rejected Plaintiff's objections to the Judgment, and Defendants did not comply with CRC 3.1312(b) to ensure the objections were properly considered. Finally, she argues that ¶ 3 of the Judgment provides unauthorized affirmative relief, and C.C.P. § 663 is the proper method for attacking the Judgment.

Motion to Enforce Judgment

Defendants move to enforce the Judgment; determine that the preservation lien created by the Stipulation secures the sum of \$341,186 plus interest; and order Plaintiff's counsel to release the funds held in his trust account.

In opposition, Plaintiff argues that Defendants' motion should be denied because the Stipulation merely preserved Defendants' right to later assert a claim to the funds; Defendants never filed a Cross-Complaint or sought affirmative relief in this action; and Defendants only obtained judgment on Plaintiff's Complaint, which gives them no monetary relief. She also argues that Defendants' claim on the deed of trust is time-

barred and cannot be summarily decided, and there is no basis for the interest sought by Defendants.

In reply, Defendants argue that the deemed admissions establish the facts supporting the debt and lien, and based on that and the Stipulation, they are entitled to the \$341,186 plus interest.

Analysis

I. Request for Judicial Notice

Plaintiff asks the Court to take judicial notice of various court filings in the present case, including the Complaint, filed 6/4/24; Gary's Answer, filed 7/8/24; Answer filed by the other Defendants, filed 8/15/24; the August 2024 Stipulation; Minute Order on Defendants' MSJ, dated 5/6/26; Notice of Ruling on Defendants' MSJ, served 5/13/26; Plaintiff's Objection to the Proposed Judgment, filed 5/13/26; Proposed Judgment submitted by Defendants in May 2026; and Judgment entered 6/5/26. The documents are the proper subject of judicial notice; the Court GRANTS the request. (Evid. Code § 452(d).)

II. The Judgment Shall Be Set Aside and Vacated Pursuant to C.C.P. § 663

A. The Motion Is Timely

Plaintiff moves to set aside the Judgment and have a corrected judgment entered pursuant to C.C.P. § 663. Pursuant to C.C.P. § 663a(a), "[a] party intending to make a motion to set aside and vacate a judgment, as described in Section 663, shall file with the clerk and serve upon the adverse party a notice of his or her intention, designating the grounds upon which the motion will be made, and specifying the particulars in which the legal basis for the decision is not consistent with or supported by the facts, or in which the judgment or decree is not consistent with the special verdict, either: (1) "[a]fter the decision is rendered and before the entry of judgment," [or] (2) "[w]ithin 15 days of the date of mailing of notice of entry of judgment by the clerk of the court pursuant to Section 664.5, or service upon him or her by any party of written notice of entry of judgment..." (C.C.P. § 663a(a)(1), (a)(2).) "The time period to file a motion to vacate is jurisdictional and cannot be extended due to mistake, inadvertence, surprise, or excusable neglect." (*Conservatorship of Townsend* (2014) 231 Cal.App.4th 691, 702.)

Defendants argue that the motion is untimely because it was filed 16 days after they served and filed Notice of Entry of Judgment. It appears that the motion was filed 16 days after Notice of Entry of Judgment, making it untimely under C.C.P. § 663(a)(a)(2). However, as Plaintiff points out, on May 13, 2026, she also filed a Notice of Objection and Objection to Defendants' Proposed Judgment ("Notice of Objection") stating the proposed judgment did not conform to the motion for summary judgment ruling. (RFJN, Ex. G.)

C.C.P. § 663a requires a party who seeks to set aside a judgment to file and serve notice of his or her intention to seek such relief either after the decision and before entry of judgment, or within 15 days of notice of entry of judgment. (C.C.P. § 663a(a)(1), (a)(2).) Plaintiff filed the Notice of Objection after the decision on the motion for summary judgment was made, and before judgment was entered, so if the Notice of Objection meets the requirements of C.C.P. § 663a(a) for providing notice of intention to set aside the Judgment, it is timely. The notice of intention to set aside a judgment must “designat[e] the grounds upon which the motion will be made, and specify[] the particulars in which the legal basis for the decision is not consistent with or supported by the facts...” (C.C.P. § 663a(a).)

In the Notice of Objection, Plaintiff stated that ¶ 3 of the Proposed Judgment requiring the release of all funds from counsel’s trust account “does not conform to the Court’s May 6, 2026 ruling” because the ruling was based solely on Plaintiff’s Complaint, and Defendants never sought affirmative relief. (RFJN, Ex. G.) The Objection also states: “Plaintiff requests that paragraph 3 be stricken from the proposed judgment, or that the Court enter a corrected judgment limited to the relief actually ordered: judgment in favor of Defendants on Plaintiff’s Complaint, Plaintiff to take nothing by the Complaint, costs and prior sanctions only as otherwise properly authorized, and no order releasing trust-account funds to the Defendants.” (*Ibid.*) This is sufficient to designate the grounds for Plaintiff’s motion to set aside and specify how the legal basis for the decision is inconsistent with the facts. Therefore, the Court finds that the Notice of Objection met the requirements of C.C.P. § 663a(a) for providing notice of intention to set aside the Judgment. As it was filed after the decision on the motion for summary judgment was made, and before entry of judgment, it was timely. Accordingly, the motion is timely.

B. The Motion Shall Be Granted

C.C.P. § 663 states the following:

A judgment or decree, when based upon a decision by the court, or the special verdict of a jury, may, upon motion of the party aggrieved, be set aside and vacated by the same court, and another and different judgment entered, for either of the following causes, materially affecting the substantial rights of the party and entitling the party to a different judgment:

1. Incorrect or erroneous legal basis for the decision, not consistent with or not supported by the facts; and in such case when the judgment is set aside, the statement of decision shall be amended and corrected.
2. A judgment or decree not consistent with or not supported by the special verdict.

(*Ibid.*)

A motion to vacate under C.C.P. § 663 is a remedy to be used when a trial court draws incorrect conclusions of law or renders an erroneous judgment on the basis of uncontroverted evidence. It allows the court to set aside a judgment that would obviously be reversed on appeal. (*See Simac Design, Inc. v. Alciati* (1979) 92 Cal.App.3d 146, 153.) Importantly, however, a court cannot change any finding of fact. (*Garibotti v. Hinkle* (2015) 243 Cal.App.4th 470, 477.) A party is “aggrieved” under § 663 when the judgment has an immediate, pecuniary and substantial effect on the party’s rights or interests. (*Plaza Hollister Ltd. Partnership v. County of San Benito* (1999) 72 Cal.App.4th 1, 13.) This section does not authorize the making of supplemental findings. (*Knapp v. City of Newport Beach* (1960) 186 Cal.App.2d 669.)

Here, Plaintiff argues that ¶ 3 of the Judgment is based on an incorrect or erroneous legal basis that is not supported by the facts because it grants affirmative relief to Defendants when the motion for summary judgment ruling only found that Plaintiff failed to establish her claims set forth in the Complaint.

As set forth above, Defendants moved for summary judgment of the Complaint based on Plaintiff’s deemed admissions, and on May 6, 2026, the Court granted that motion. In the Complaint, Plaintiff asserted causes of action for violation of Civil Code §2941, cancellation of instrument, quiet title, slander of title, breach of contract, declaratory relief, injunctive relief, and fraud, based on her claims that she paid off the deed of trust held by Gary on the Property, and Gary failed to reconvey the deed of trust to her as required, instead contending that he still holds an interest in the Property. In granting summary judgment on the Complaint, the Court held that the evidence produced by Defendants based on the deemed admissions was sufficient to show that Plaintiff lacked evidence to support her claims, and because the deemed admissions conclusively established those facts, they could not be contested through contradictory evidence. The Court granted judgment on the Complaint and ordered Defendants to submit a proposed judgment.

Defendants submitted a proposed judgment that the Court ultimately signed and entered. The Judgment states that judgment is entered in favor of Defendants on all causes of action asserted in the Complaint and Plaintiff shall take nothing by way of the Complaint. (Judgment at ¶¶ 1-2.) It also requires payment of monetary sanctions previously entered against Plaintiff and her counsel. (Judgment at ¶ 4.) Plaintiff did not, and does not, object to any of these provisions of the Judgment. The paragraph at issue is ¶ 3, which states:

Pursuant to the Stipulation and Order of this Court dated August 14, 2024 (re: sale of the real property located at 1286 Coco Court, Riverside, California, APN 241-401-007, and deposit of net sale proceeds), Plaintiff’s counsel, Mark A. Mellor, Esq., of The Mellor Law Firm, is hereby ordered to release forthwith all funds currently held in The Mellor Law Firm Client Trust Account (Reference: Nissen v. Nissen, RCSC Case No. CVRI2403057) to Defendants ALAN NISSEN, LAURIE NISSEN, and EXTREME TOYS

FAMILY PARTNERSHIP (or as otherwise directed by further order of this Court), consistent with the preservation lien and rights reserved therein in the amount of \$341,186.00 (plus any accrued interest).

(Judgment at ¶ 3.)

In the Stipulation referenced in the Judgment, Defendants agreed to reconvey their rights under the deed of trust and withdraw their demand from escrow so the sale of the Property could close, and Patricia agreed that the reconveyance of the deed of trust did not waive Defendants' rights to assert their claim to those funds "in any future litigation between the parties" if the parties cannot come to an agreement on "a plan to ensure the long term protection of Patricia and the security of the proceeds..." (Stipulation at ¶¶ 1-2.) The Stipulation further provides that "[i]f the parties cannot come to an agreement regarding the long term care and protection of Patricia with respect to the proceeds, and decide to litigate the merits of this matter before the court instead, a preservation lien in the amount of [Defendants'] Demand to Escrow of \$341,186.00 will be held in The Mellor Law Firm Client Trust Account referenced herein in paragraph 4 for the protection of [Defendants] to secure their interest in those funds until decided on by the court. Nothing in the reconveyance of the Assignment DOT by the ALAN Parties detailed in Paragraph 1 above may be construed against them or their rights to those funds should the parties decide to litigate their dispute in the future." (Stipulation at ¶ 2 [emphasis added].)

Defendants contend that ¶ 2 of the Stipulation above provides support for ¶ 3 of the Judgment awarding them \$341,186, plus interest. However, as discussed above, summary judgment was granted only on Plaintiff's claims made in the Complaint, not any affirmative claims of Defendants. In fact, as Plaintiff points out, Defendants make no affirmative claims in the present case. Thus, the Court made no decision on Defendants' right to the funds when it granted summary judgment on Plaintiff's Complaint (only finding Plaintiff could not support her claims, not that Defendants were entitled to relief), and there is therefore no basis for awarding Defendants damages. Furthermore, the Stipulation specifically states that the parties agreed that Defendants' reconveyance of the deed of trust would not waive their right to assert a claim to the funds "in any future litigation between the parties," and it would not be construed against them "should the parties decide to litigate their dispute in the future." (Stipulation at ¶ 2.) Thus, the Stipulation, as written, clearly contemplates future litigation to enforce Defendants' right to the funds.

Based on the above, Plaintiff is correct that the legal basis for awarding Defendants \$341,186 based on summary judgment of Plaintiff's claims is not supported by the facts. Accordingly, the Court **GRANTS** Plaintiff's motion. The Court **SETS ASIDE and VACATES** the Judgment entered on June 5, 2026. A corrected Judgment shall be entered as follows:

1. Judgment is entered in favor of Defendants GARY G. NISSEN, ALAN NISSEN, LAURIE NISSEN, and EXTREME TOYS FAMILY PARTNERSHIP and against Plaintiff PATRICIA L. NISSEN (deceased, by and through her Successor in Special Administration, Lysie B. Ashton) on all causes of action asserted in the Verified Complaint filed June 4, 2024.
2. Plaintiff shall take nothing by way of her Complaint.
3. The Court's prior orders awarding monetary sanctions as to Plaintiff and Plaintiff's counsel, Mark A. Mellor and The Mellor Law Firm, jointly and severally, shall pay to Defendants the total sum of \$2,720.00 (\$1,360.00 on Gary G. Nissen's Requests for Admission, Set One, and \$1,360.00 on Alan Nissen's Requests for Admission, Set One), plus interest at the legal rate from the date of the original November 17, 2025 orders until paid in full.
4. Defendants shall recover their costs of suit in the amount determined by the filing of a Memorandum of Costs pursuant to California Rules of Court, rule 3.1700.

As the Judgment is Vacated, the Court finds that Defendants' motion to enforce said Judgment is moot.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2600511	MARCIAL vs HYUNDAI MOTOR AMERICA	MOTION TO COMPEL

Tentative Ruling:

The Court DENIES the motion to compel arbitration on the ground that no valid and enforceable arbitration agreements exists.

Factual / Procedural Context:

Plaintiff, Manuel Alfredo Perez Marcial, alleges that on 2/18/23, he purchased a new 2023 Hyundai Palisade from Cardinale Way Hyundai in Corona, which was manufactured and/or distributed, and warranted by Defendant, Hyundai Motor America (HMA). The vehicle had defects and nonconformities to warranty, which substantially impair the use, value, and safety of the vehicle including ignition issues, defects in warning lights/symbols, and braking issues. He alleges that neither HMA nor its authorized repair facilities could conform the vehicle to warranties after a reasonable time. And HMA has failed to repair/replace the vehicle, or provide restitution. Plaintiff filed his Complaint on 1/20/26 alleging five causes of action: 1) violation of the Song Beverly Consumer Warranty Act (SBCWA) – Civil Code § 1793.2(d); 2) violation of the SBCWA – CC § 1793.2(b); 3) violation of the SBCWA – breach of express warranty; 4) violation of the SBCWA – breach of implied warranty; and, 5) violation of Bus. & Prof. Code § 17200.

Defendant, HMA, brings this motion to compel arbitration pursuant to the arbitration agreement (AA) within the Bluelink Connected Services Agreement (CSA) between Plaintiff and HMA, and to stay the action pending arbitration. (Federal Arbitration Act (FAA) 9 USC §§ 1-16; CCP § 1281, *et. seq.*) HMA argues that the FAA expressly applies to the CSA; that the AA is valid and enforceable; and, that all of Plaintiff's claims fall within the scope of the AA in the CSA.

Plaintiff, Manual Alfredo Perez Marcial, opposes the motion arguing that HMA moves based on either a clause in the warranty manual or a clause in the Bluelink CSA (of note is that HMA references only the Bluelink CSA, not any clause in any warranty manual); that HMA has not established Plaintiff's consent to enter an AA; that there is no estoppel (although the Motion does not mention estoppel); that there is no longer a presumption of arbitration (*Morgan v. Sundance* (2022) 596 U.S. 411, 418-419); that HMA has the burden of proving the existence of an AA, which it did not do; and, that HMA cannot compel arbitration pursuant to the Bluelink CSA as there is no evidence that Plaintiff enrolled in Bluelink.

The Reply re-asserts prior arguments and adds that Plaintiff has not rebutted his consent; that HMA does not rely on any estoppel theory nor is it seeking to compel arbitration based on a clause in the warranty manual; and, that Plaintiff misunderstands the *Morgan* decision, which held only that courts may not invent arbitration-specific procedural rules regarding waiver.

Analysis:

Upon the petition/motion of a party to an agreement to arbitrate, the court must grant a petition to compel arbitration unless it finds: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (CCP § 1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.) The petition/motion to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (CRC rule 3.1330; *see also Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218–19.) The party seeking arbitration must prove the existence of the arbitration agreement. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2015) 55 Cal.4th 223, 236.) The burden then shifts to the opposing party to prove any defense such as unconscionability. (*Id.*)

“In ruling on a petition to compel arbitration, the trial court may consider evidence on factual issues relating to the threshold issue of arbitrability Parties may submit declarations when factual issues are tendered with a motion to compel arbitration.”

(*Engineers & Architects Assn. v. Community Development Dept.* (1994) 30 Cal.App.4th 644, 653.) In the summary proceedings on a motion to compel arbitration, “the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination.” (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.)

The California Supreme Court recently explained in *Fuentes v. Empire Nissan, Inc.* (2026) 19 Cal.5th 93, 110, that relying on a policy favoring arbitration “as an interpretive presumption” was “misplaced.” “[T]he policy “favoring” arbitration is not one of promoting arbitration over litigation, but instead of ensuring that arbitration agreements are not disfavored, i.e., that they are treated like other contracts.” (*Id.* citing *Quach v. Cal. Commerce Club, Inc.* (2024) 16 Cal.5th 562, 579.) Thus, there is no longer a presumption that the law favors arbitration over litigation in court.

The FAA Applies

HMA argues that the FAA applies to the AA in the CSA in this case. The FAA governs arbitration in written contracts involving interstate commerce, and provides that arbitration agreements are valid, irrevocable, and unenforceable unless there are grounds that exist at law or in equity for the revocation of any contract. (9 USC § 2; *Rittmann v. Amazon.com, Inc.* (9th Cir. 2020) 971 F.3d 904, 909.) The FAA embodies a strong federal policy favoring arbitration. To assure uniform results as to arbitrability of disputes subject to the Act, conflicting state law is preempted under the Supremacy Clause. (*Southland v. Corp. v. Keating* (1984) 465 U.S. 1, 12.) The party claiming that the contract involves interstate commerce and the FAA preempts state law has the burden of proving that the underlying transaction involved interstate commerce. (*Woolfs v. Sup. Ct. (Turner)* (2005) 127 Cal.App.4th 197, 211-214.) Importantly, the FAA applies when an arbitration agreement expressly states that it is governed by the FAA. (*Aviation Data, Inc. v. Am. Express Travel Related Servs. Co., Inc.* (2007) 152 Cal.App.4th 1522, 1534-1535; *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355.)

Here, the AA in the CSA does *expressly* state that it is governed by the FAA. (Dec.Rao ¶ 20, Ex. “B”, § 14.C. [p. 19 of 28].) HMA also argues that the FAA applies because the AA is in writing and “automotive sales necessarily involve interstate commerce” (Motion, p. 3:22-28; see also *Ibid.*) The CSA provides: “This Agreement evidences a transaction in interstate commerce, and thus the Federal Arbitration Act governs the interpretation and enforcement of this arbitration provision.” (*Ibid.*) As a result, the FAA applies.

Existence of an Arbitration Agreement (AA)

Defendant, HMA, asserts that Bluelink is a complimentary 3-year subscription provided with the sale of the vehicle. (Dec.Rao ¶ 21, Ex. “C”.) Plaintiff agreed to arbitrate his any disputes regarding Hyundai’s Bluelink services for the subject vehicle

when he enrolled in Bluelink Services on the Dealer Web Portal (DWP) through a process known as the Dealer-Assisted Enrollment process. (Dec.Rao ¶¶ 6-7.) Importantly, any writing must be authenticated before the writing, or secondary evidence of its content, may be received in evidence. (Evidence Code §1401; *People v. Valdez* (2011) 201 Cal.App.4th 1429, 1435.) “Authentication of a writing means (a) the introduction of evidence sufficient to sustain a finding that it is the writing that the proponent of the evidence claims it is or (b) the establishment of such facts by other means provided by law.” (Evid. Code § 1400; *People v. Valdez, supra.*)

The declaration of Vijay Rao, the Director of Ops & Owner Apps/Web for HMA, describes the process by which customers “like Plaintiff” agree to the CSA upon enrolling their vehicle in Bluelink services. (Declaration of Vijay Rao, ¶¶ 1, 8.) First, a dealer employee creates an account for the customer on the dealer-owned device, and associates the customer’s vehicle with that account. (*Id.* ¶¶ 8, 21, Ex. “D”.) Dealer employees are required to follow the same specific steps to interact with a customer enrolled in Bluelink services. (*Id.* ¶ 9.) Customers are required to enter their personal details and are presented with a checkbox indicating acceptance of the Bluelink terms and conditions and then select the “complete” button just below. (*Id.* ¶¶ 10-11.) Plaintiff would have had to check the box himself to acknowledge assent to the CSA. (*Id.* ¶ 11.) Mr. Rao provides additional general information about activating Bluelink services. (*Id.* ¶¶ 12-14.)

Mr. Rao declares he is familiar with and has access to the database containing Plaintiff’s Bluelink enrollment and acceptance documents. (*Id.* ¶¶ 15-17.) Based on his review of Plaintiff’s records, he enrolled his vehicle in Bluelink services on 2/18/23 using the DWP and assented on that date to the effective CSA. (*Id.* 18.) Exhibit A is copy of a redacted screenshot of the internal database record of Plaintiff’s assent, which is explained by Mr. Rao. (*Id.* ¶ 19, Ex. “A”.) There was also an acknowledgment checkbox screen provided by HMA that does not identify any particular individual. (*Id.* Ex. “C”.) Mr. Rao indicates it is what Plaintiff “would have seen when he assented to the then-effective CSA on the DWP using the Dealer-Assisted Enrollment process. (*Id.* ¶ 21.) Exhibit B is the CSA “that was in effect at that time.” (*Id.* at ¶ 20, Ex. “B”.) All of the documents presented by Mr. Rao are generic, and not specific to Plaintiff.

Thus, there is very little evidence to support that Plaintiff actually checked the box, or otherwise “signed” or agreed to the CSA. While Rao contends that on 2/18/23, Plaintiff enrolled his vehicle in Bluelink services, this statement lacks foundation. (*Id.* at ¶ 18.) Rao does not state he has personal knowledge that Plaintiff enrolled in the CSA at the time of purchase. The only document that refers to Plaintiff is Ex. “A”. Thus, it is unclear whether Plaintiff agreed to the CSA.

Even if Plaintiff did agree to the CSA, the agreement does not cover Plaintiffs’ claims. The CSA states:

Hyundai and you agree to arbitrate any and all disputes and claims between us arising out of or relating to this Agreement, Connected Services,

Connected Services Systems, Service Plans, the Vehicle, use of the sites, or products, services, or programs you purchase, enroll in or seek product/service support for, whether you are a Visitor or Customer, via the sites or through mobile application, except any disputes or claims which under governing law are not subject to arbitration, to the maximum extent permitted by applicable law. This agreement to arbitrate is intended to be broadly interpreted and to make all disputes and claims between us subject to arbitration to the fullest extent permitted by law. However, any dispute you or we may have relating to copyrights or other intellectual property shall not be governed by this agreement to arbitrate. For the avoidance of doubt, this means that any claims you or we may have relating to intellectual property rights against the other, including injunctive and other relief sought, may be brought in a court of competent jurisdiction. (Dec.Rao, Ex. "B", § 14.C.(a) at p. 9 of 11.)

The agreement also states that the agreement to arbitrate otherwise includes, but is not limited to:

claims based in contract, tort, warranty, statute, fraud, misrepresentation or any other legal theory; claims that arose before this or any prior Agreement (including, but not limited to, claims relating to advertising); claims that are currently the subject of purported class action litigation in which you are not a member of a certified class; claims relating to the Vehicle for which you seek product or service support via the sites; claims arising out of or relating to the Telephone Consumer Protection Act; claims relating to your data privacy or information security; and claims that may arise after the termination of this Agreement. (*Ibid.*)

The CSA covers enforcement of the CSA, use of the site, and products purchased through the site(s).¹ Nowhere in Plaintiff's Complaint are there any allegations of defects in Bluelink services, Connected Services, vehicle technology, issues with the use of the Bluelink site, or defects with products purchased through the site. Defendant argues that the arbitration agreement must be broadly construed to cover all disputes related to the "Vehicle" and its "warranty." This argument lacks merit. "General contract law principles include that the basic goal of contract interpretation is to give effect to the parties' mutual intent at the time of contracting. ... The words of a contract are to be understood in their ordinary and popular sense. ... Furthermore, the whole of a contract is to be taken together, so as to give effect to every part, if

¹ The CSA indicates that "Connected Services" are the vehicle technology and service functions received as part of the enrollment in a Hyundai Bluelink or Genesis Connected Services Service Plan, including but not limited to: remote service activation; stolen vehicle recovery; enhanced roadside assistance; SOS/CAN; POI send-to-car and destination search; digital key 2.0; Verizon hotspot; and over the Air software updates.

reasonably practicable, each clause helping to interpret the other.” (*Franco v. Greystone Ridge Condominium* (2019) 39 Cal.App.5th 221, 227 [internal citations and quotations omitted].) Here, Defendant takes the terms “Vehicle” and “warranty” too far. These words must be construed in the context of the entire CSA. This agreement clearly governs the terms and conditions of “Connected Services,” not warranties (particularly under the SBA). Thus, the arbitration provision must be construed as covering disputes related to these services only.

Based on the foregoing, HMA has failed to meet its burden to show the existence of a valid and enforceable arbitration agreement.